



CHAPTER xxxvi

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity known as the Baptist Chapel and other Charities at Totnes and Tuckenhay in the County of Devon.

[28th March 1956.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-four reported that they had approved and certified a Scheme for the application or management of the following charities at Totnes and Tuckenhay in the County of Devon:—

1. Baptist Chapel at Totnes ;
2. Manse for the Minister of the said Chapel ;
3. Manse and net proceeds of sale of the Congregational Chapel, Schoolroom and Trust Property at Totnes ;
4. Charity of Barbara Jetsome for the Minister of the Congregational Chapel at Totnes ;
5. Charity of Barbara Jetsome for the benefit of poor members attending the Congregational Chapel at Totnes ;
6. Charity of Harriet Southcott for the upkeep and repair of the Congregational Chapel at Totnes ;
7. Baptist Mission Chapel at Tuckenhay :

And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE FOLLOWING CHARITIES IN THE COUNTY OF DEVON

1. THE CHARITY KNOWN AS THE BAPTIST CHAPEL, AT TOTNES, COMPRISED IN A CONVEYANCE DATED THE 28TH NOVEMBER 1877 TO WHICH CHARITY BY AN ORDER OF THE CHARITY COMMISSIONERS OF THE 16TH NOVEMBER 1954 THE CHARITABLE TRUSTS ACTS 1853 TO 1939, WERE EXTENDED IN SO FAR AS MIGHT BE NECESSARY TO ENABLE THE COMMISSIONERS TO APPROVE AND CERTIFY TO PARLIAMENT A SCHEME FOR THE APPLICATION AND MANAGEMENT OF THE CHARITY ;
2. THE CHARITY FOR A MANSE FOR THE MINISTER OF THE SAID BAPTIST CHAPEL, AT TOTNES, WHICH CHARITY IS COMPRISED IN A DECLARATION OF TRUST DATED THE 11TH JULY 1942 ;
3. THE CHARITY CONSISTING OF A MANSE AND OF THE NET PROCEEDS OF SALE OF THE CONGREGATIONAL CHAPEL, SCHOOL-ROOM AND TRUST PROPERTY, AT TOTNES, COMPRISED IN THE FOLLOWING INSTRUMENTS OR SOME OF THEM:—
 - CONVEYANCE DATED THE 19TH FEBRUARY 1835 ;
 - CONVEYANCE DATED THE 11TH JUNE 1841 ;
 - CONVEYANCE DATED THE 30TH NOVEMBER 1882 ;
 - CONVEYANCE DATED THE 22ND DECEMBER 1917 ;
 - SCHEME OF THE CHARITY COMMISSIONERS OF THE 25TH NOVEMBER 1927 ;
 - SCHEME OF THE SAID COMMISSIONERS OF THE 24TH NOVEMBER 1953 ;
4. THE CHARITY OF BARBARA JETSOME FOR THE MINISTER OF THE SAID CONGREGATIONAL CHAPEL, AT TOTNES, WHICH CHARITY WAS FOUNDED BY WILL DATED THE 14TH MARCH 1734 AND IS COMPRISED IN AN INDENTURE DATED THE 20TH DECEMBER 1792 ;
5. THE CHARITY OF BARBARA JETSOME FOR THE BENEFIT OF POOR MEMBERS ATTENDING THE SAID CONGREGATIONAL CHAPEL, AT TOTNES, WHICH CHARITY WAS FOUNDED BY THE SAID WILL DATED THE 14TH MARCH 1734 AND COMPRISED IN THE SAID INDENTURE DATED THE 20TH DECEMBER 1792 ;
6. THE CHARITY OF HARRIET SOUTHCOTT FOR THE UPKEEP AND REPAIR OF THE SAID CONGREGATIONAL CHAPEL, AT TOTNES, WHICH CHARITY WAS FOUNDED BY WILL PROVED AT EXETER ON THE 31ST JULY 1944 ;
7. THE CHARITY KNOWN AS THE BAPTIST MISSION CHAPEL, AT TUCKENHAY, COMPRISED IN A CONVEYANCE DATED THE 10TH DECEMBER 1906 TO WHICH CHARITY BY AN ORDER OF THE CHARITY COMMISSIONERS OF THE 16TH NOVEMBER 1954 THE CHARITABLE TRUSTS ACTS, 1853 TO 1939, WERE EXTENDED IN SO FAR AS MIGHT BE NECESSARY TO ENABLE THE COMMISSIONERS TO APPROVE AND CERTIFY TO PARLIAMENT A SCHEME FOR THE APPLICATION AND MANAGEMENT OF THE CHARITY.

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1. From and after the date of this Scheme the above-mentioned Charities and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charities shall be administered and managed subject to and in conformity with the provisions of this Scheme.
2. The rentcharges specified in the said schedule and belonging respectively to the Charities numbered 4 and 5 above are hereby vested in The Official Trustee of Charity Lands for all the estate and interest therein belonging to or held in trust for those Charities respectively.
3. The body corporate called the Devon Baptist Association Corporation Limited (hereinafter called the Devon Baptist Association) shall be the Trustees of the Charities numbered 1 and 2 above.
4. The Charity numbered 7 above shall be administered and managed by the Devon Baptist Association, the Trustees thereof.
5. The properties specified in the said schedule and belonging respectively to the said Charities numbered 1 and 2 are hereby vested in the Devon Baptist Association for all the estate and interest therein belonging to or held in trust for those Charities respectively.
6. The Charity numbered 3 above shall be administered and managed by the body corporate called the Devon Congregational Union (Incorporated) (hereinafter called the Devon Congregational Union) the Trustees thereof.
7. The Trustees of the said Charity numbered 1 shall permit the chapel buildings belonging to the Charity to be used occupied and enjoyed—
 - (a) as places for the public exercise of religious worship for and by a church consisting of Baptists and Congregationalists known as the Totnes United Free Church (hereinafter called the United Church) and so that baptism by immersion or infant baptism shall be administered as desired by the individual believers who worship therein;
 - (b) for the instruction of children and adults and for the promotion of such other charitable purposes religious or otherwise as the United Church shall from time to time direct.

In this Scheme the expression "the chapel buildings" shall unless the context otherwise requires mean the chapel buildings now belonging to the above-mentioned Charity numbered 1 or other the chapel buildings in which the United Church from time to time assembles for worship accordingly.

8. The Trustees of the said Charity numbered 1 shall permit to officiate in the chapel buildings as the stated minister or pastor of the United Church such person whose name shall for the time being be either on the list of Accredited Ministers or Probationers of the Baptist Union of Great Britain and Ireland or on the list of Accredited Ministers or Evangelists of the Congregational Union of England and Wales and who being qualified as aforesaid shall

have been duly elected by a special resolution of the United Church :
Provided that—

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- (1) The stated minister or pastor of the United Church shall be alternately Baptist and Congregationalist unless the duration of the ministry of the retiring or any deceased minister together with that of his immediate predecessor if of the same denomination shall have been less than three years ;
- (2) The provisions of this clause may be varied as regards the election of any minister with the consent in writing of the Devon Baptist Association and the Devon Congregational Union.

9. The Trustees of the said Charity numbered 2 shall permit the property specified in the said schedule and belonging to that Charity to be occupied as a residence by the minister for the time being of the United Church provided that if and when any such minister does not desire to occupy the said residence the Trustees may let the same subject to the restrictions hereinafter contained at the best rent that can reasonably be obtained.

10. The Trustees of the said Charity numbered 3 shall permit the property specified in the said schedule and belonging to that Charity to be used as a residence by the minister for the time being of the United Church provided that if and when any such minister does not desire to occupy the said residence the Trustees may let the same subject to the restrictions hereinafter contained at the best rent that can reasonably be obtained.

11. The Trustees of the said Charity numbered 1 shall permit such occasional ministers or other persons to officiate in the chapel buildings as the deacon or deacons of the United Church for the time being or any committee from time to time appointed by the United Church for the purpose shall appoint unless and until such appointment shall be negatived by a resolution of the United Church.

12. The Devon Baptist Association and the Devon Congregational Union shall permit the deacon or deacons of the United Church or other person or persons appointed for the purpose by resolution of the United Church to receive all moneys contributed or subscribed for the purposes of the United Church and also (subject as hereinbefore provided with respect to the said residence for a minister) the net rents arising from any lease of property of the Charities and any other money which may come into their hands for or in connexion with the United Church or the respective Charities in the nature of income after the payment thereof of the expenses of repairing and insuring the buildings of the Charities and the interest upon any mortgage or debt secured on the property of the Charities or incurred in the erection completion repair alteration enlargement or improvement of the said buildings in trust to pay such sum for the support of the minister as the United Church shall by resolution have determined and to apply the remainder in payment of the incidental and other expenses attending the maintenance of religious worship in the said chapel buildings and for such other purposes

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of the Charities as the United Church shall from time to time by resolution direct: Provided nevertheless that moneys or other property received by either the Devon Baptist Association or the Devon Congregational Union for any specified purpose in connexion with the United Church shall not be subject to this clause but shall be applied for such specified purpose.

13. The Trustees concerned shall from time to time with the consent of the United Church permit any buildings for the time being belonging to the Charities to be repaired altered enlarged or taken down and rebuilt so as to render the same better adapted for the purposes aforesaid and shall in such manner as the United Church shall propose and the Trustees concerned shall approve permit the erection from time to time of additional buildings on the lands of the Charities respectively administered and managed by them.

14. Except as regards any property of the Charities which for the time being is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bona fide used as a place of meeting for religious worship and except as regards such other property (if any) of the Charities as for the time being by virtue of any provision of the Charitable Trusts (Places of Religious Worship) Amendment Act, 1894, or otherwise is exempt from the operation of the Charitable Trusts Acts, 1853 to 1939, the Trustees concerned shall not make or grant otherwise than with the approval of the Charity Commissioners any sale, exchange, mortgage or charge of the estates of the Charities or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding 21 years.

15. Subject to the restrictions contained in the last preceding clause hereof it shall be lawful for the Trustees concerned without the necessity of obtaining the consent of the United Church to raise by mortgage of the property of the Charities or by the deposit of the title deeds thereof such sum or sums of money as in the exercise of their discretion they think proper for the purpose of paying off any debt or debts incurred or to be incurred in the erection or completion of buildings erected or to be erected on the lands belonging to the respective Charities and not provided for by voluntary subscriptions.

16. Subject to the restrictions hereinbefore contained the Trustees concerned may whenever proposed by a special resolution of the United Church to which they have consented sell mortgage or demise for any term of years the property of the Charities administered and managed by them or any part thereof or exchange the same or any part thereof for any other freehold or leasehold premises in accordance with the directions of the United Church. The Trustees concerned shall stand possessed of the moneys arising from any such mortgage sale or exchange and any other moneys which may come to their hands in connexion with the Charities in the nature of capital after paying all costs and expenses incurred in relation thereto upon trust to lay out and apply the same in or towards the

enlargement, rebuilding, improvement or repair of the buildings belonging to the Charities or in or towards the purchase of other premises of any tenure or in furtherance of any of the other purposes of this scheme in relation to the Charities in such manner as the United Church shall by special resolution propose and the Devon Baptist Association and the Devon Congregational Union approve but so that any premises so purchased or so taken in exchange whether freehold or leasehold shall be situated within 20 miles of the Borough of Totnes in the County of Devon and shall be held by the Trustees concerned upon the same trusts and subject to the same powers and provisions as are herein declared concerning the premises sold. If any difference shall arise as to whether moneys coming into the hands of the Trustees concerned are capital or income the decision of the Trustees concerned shall be conclusive.

17. Upon any mortgage, lease, sale or exchange purporting to be made in pursuance of any trust or power herein contained no mortgagee, lessee, purchaser or other person dealing bona fide with the Trustees concerned shall be bound or concerned to inquire whether the occasion for executing or exercising such trust or power has arisen or as to whether any special or other meeting of the United Church has been held or as to the competency or regularity of any such meeting or of any requisition or resolution passed or purporting to have been passed thereat or (except as regards the said restrictions hereinbefore contained) otherwise as to the propriety or regularity of any such mortgage, lease, sale or exchange and notwithstanding any impropriety or irregularity in such mortgage, lease, sale or exchange the same shall as regards a mortgagee, lessee, purchaser or other person as aforesaid (except as regards the said restrictions) be deemed to be within the aforesaid trusts or powers and be valid accordingly.

18.—(1) A special meeting of the United Church shall mean a meeting convened and held according to the following provisions:—

- (a) The meeting shall be convened by or at the request of the minister or the deacons or the committee for the time being of the United Church or of the Devon Baptist Association and the Devon Congregational Union or of one-fifth in number of the members of the United Church entitled to vote at such meeting by notice announcing the place day and hour of the meeting and the business or matter to be transacted or considered. Such notice shall be given on the two Lord's Days immediately preceding such meeting at each service held in the Chapel at which the United Church assembles for worship;
- (b) The meeting shall be held not earlier than the Wednesday next following the second of such two Lord's Days;
- (c) The only persons who shall be entitled to attend and vote at such meeting shall be those who whether male or female have attained the age of 18 years and have been members of the United Church during at least 6 calendar months next preceding the meeting;
- (d) No votes shall be given by proxy but votes may be given by ballot or otherwise as the meeting may direct:

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(2) A "special resolution" in this scheme means a resolution passed at a special meeting of the United Church by a majority consisting of not less than two-thirds of the persons qualified to be present and to vote and who have voted on the resolution and the same shall be binding upon all the members of the United Church whether present or not at such meeting.

(3) Except where a special resolution is hereby expressly required a resolution passed at a special meeting by a simple majority of the persons qualified to be present and to vote and voting on the resolution shall be binding on all the members of the United Church whether present or not at such meeting.

(4) The proceedings and resolutions of any special meeting shall be evidenced by a minute thereof under the hand of the chairman who shall have a casting vote and such minute shall be conclusive evidence that any resolution therein expressed to have been passed was passed at a meeting duly convened and held and by the requisite majority and it shall further be presumed that the person subscribing such minute as chairman was duly appointed to the office.

19. Subject as aforesaid the Devon Baptist Association and the Devon Congregational Union shall permit the United Church in all respects to manage and conduct according to its uncontrolled discretion the affairs of the United Church and all organisations and activities belonging thereto or associated therewith which shall be carried on upon any part of the property of the Charities administered and managed by either of the Trustees : Provided always that the United Church being a Union of members of the Baptist and Congregational Denominations shall so far as is reasonably practicable equally support the denominational activities and funds of each of the said Denominations, not unduly preferring the activities and funds of either of the said Denominations over the other of them.

20. In the event of the removal of the United Church to another locality the powers hereby vested in the United Church in regard to the Charities shall not thereby be suspended or in any manner impaired or affected.

21.—(1) The Devon Congregational Union shall be the Custodian Trustees of the Charity numbered 6 above.

(2) The Deacons for the time being of the United Church shall be the Trustees of the Charities numbered 4 and 5 above and the Managing Trustees of the said Charity numbered 6.

22. The Trustees of the said Charities numbered 4 and 5 and the Managing Trustees of the said Charity numbered 6 shall apply the clear yearly income of the said Charities for the following purposes :—

- (a) as to the said Charity numbered 4 in aid of the salary of the stated minister or pastor of the United Church ;
- (b) as to the said Charity numbered 5 in aid of such poor members of the United Church as in the opinion of the Deacons are in distress, and in such relief as the Deacons think fit ; and
- (c) as to the said Charity numbered 6 for the upkeep and repair of the chapel buildings as aforesaid.

23.—(1) If at any time it shall be determined by the Joint Authorities (as hereinafter defined) that any of the following have occurred:—

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- (a) that by reason of the district in which the chapel buildings are situated being adequately served or provided for by some other chapel or meetinghouse in the same district belonging to a church in membership with either of the Unions or for any other good and sufficient reason whatsoever the property of the Charities or any part thereof is no longer required or can no longer usefully be retained for the purposes of this present Scheme;
- (b) that the Minister for the time being does not hold the qualifications required by or has not been appointed in accordance with the provisions of clause 8 hereof;
- (c) that the United Church is not in spirit and in truth complying with the proviso to clause 19 hereof;
- (d) that regular religious worship in the chapel buildings has been discontinued for six calendar months together;
- (e) that the number of members of the United Church entitled to vote at a special meeting of the church has been reduced to 15 or under;
- (f) that the number of members of the United Church entitled to vote as aforesaid and who have been baptised, that is to say, immersed on a profession of faith has been reduced to seven or under;
- (g) that the number of infant baptisms in the buildings used by the United Church for religious worship during the last preceding period of five years has been less than five;

and that in consequence it is desirable that the provisions of this clause shall take effect then and in that case the following provisions shall take effect:—

- (2) (a) The endowments of the said Charities numbered 1, 2 and 7 shall be held by the Trustees thereof upon the trusts affecting those Charities immediately before the date of this Scheme;
- (b) The endowments of the said Charity numbered 3 shall be held by the Trustees upon the trusts affecting that Charity immediately before the date of this Scheme;
- (c) Any endowments held for the United Church shall be apportioned in such shares as may be agreed and determined by the Joint Authorities or in default of agreement as may be approved or determined by the Charity Commissioners and shall be held upon such charitable trusts religious or otherwise as may be agreed and determined by the Joint Authorities and approved or determined by an Order of the Commissioners;
- (d) The Trustees of the said Charities numbered 4, 5 and 6 shall apply to the Commissioners for an Order establishing a Scheme for the administration of the Charities;

(3) For the purposes of this clause the expression "Joint Authorities" means the Baptist Union of Great Britain and Ireland and the Congregational Union of England and Wales acting through a joint committee consisting of the Officers for the time being thereof and the Solicitor for the time being of the said Congregational Union or such of them as may be present and upon any vote being taken at any such meeting all the representatives of the said Baptist Union shall together have one vote and all the representatives of the said Congregational Union shall together have one vote.

25. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

26. The date of this Scheme shall be the date of the Act of Parliament confirming the same.

CHARITY NUMBERED 1 ABOVE

Land situate in Fore Street in the Borough of Totnes in the County of Devon with the Meeting House and Vestries thereon and the buildings formerly known as The Mayoralty House being the property comprised in the above-mentioned conveyance dated the 28th November 1877 made between Benjamin William Hayman and five others of the first part Charles Lovis Tucker and two others of the second part and the said Benjamin William Hayman and eight others of the third part and enrolled in the High Court of Chancery on the 14th December 1877.

CHARITY NUMBERED 2 ABOVE

Land situate at Bridgetown in the said Borough of Totnes with the dwellinghouse thereon known as 3 Rhine Villas, Totnes, being the property comprised in the above-mentioned declaration of trust dated the 11th July 1942 and made by James Sanders Brock and three others and in a conveyance made the 17th August 1944 between The Most Noble Evelyn Francis Edward Seventeenth Duke of Somerset of the first part Archibald Edward Balfour and two others of the second part and Francis George Reeves and four others of the third part.

CHARITY NUMBERED 3 ABOVE

Land situate in the said Borough of Totnes being part of a field or close formerly known as Castle Meadow being the land comprised in an indenture made the 30th November 1882 between Theodore

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Bryett of the one part and Thomas Bond and five others of the other part and enrolled in the High Court of Chancery on the 5th December 1882 with the Manse since erected thereon.

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The following sums of stock standing in the name of the Devon Congregational Union (Incorporated) :—

£2,087 9s. 2d. 3½ per cent. Treasury Stock, 1977–80,, representing the clear proceeds of the sale under the authority of an Order of the Charity Commissioners of the 23rd February 1954 of the Congregational Chapel and School-room formerly belonging to the Charity numbered 3 above.

£271 8s. 11d. 4 per cent. Funding Stock, 1960–90, representing the clear proceeds of the sale under the authority of an Order of the said Commissioners of the 4th November 1952 of the property situate in Shooters Hill, Totnes, in the said County of Devon and formerly belonging to the said Charity numbered 3.

CHARITY NUMBERED 4 ABOVE

£39 10s. 8d. 2½ per cent. Consolidated Stock standing in the name of The Official Trustees of Charitable Funds.

An apportioned yearly payment of £1 7s. 4d. being part of an annuity or yearly payment of £4 apportioned under the authority of a certificate of the Minister of Agriculture and Fisheries dated the 19th August 1932 charged upon or issuing out of land comprising .816 acres situate in the Parish of Ashburton in the County of Devon and being part of Maiden Bridge Meadow numbered 155 on the Ordnance Survey map.

An apportioned yearly payment of £1 19s. 4d. being other part of the above-mentioned annuity or yearly payment apportioned under the said authority charged upon or issuing out of land comprising 1.182 acres situate in the said Parish of Ashburton and being part of Maiden Bridge Field numbered 441 on the Ordnance Survey map.

Charity numbered 5 above

£25 13s. 3d. 2½ per cent. Consolidated Stock standing in the name of the said Official Trustees.

An apportioned yearly payment of 17s. 8d. being part of an annuity or yearly payment of £2 12s. apportioned under the authority of the said certificate of the Minister of Agriculture and Fisheries dated the 19th August, 1932, charged upon or issuing out of land comprising .816 acres situate in the said Parish of Ashburton and being part of the said Maiden Bridge Meadow.

An apportioned yearly payment of £1 5s. 8d. being other part of the above-mentioned annuity or yearly payment apportioned under the said authority charged upon or issuing out of land comprising 1.182 acres situate in the said Parish of Ashburton and being part of the said Maiden Bridge Field.

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Charity numbered 6 above

£400 2½ per cent. Treasury Stock, 1975 or after, standing in the names of Edward Charles Bennett (deceased), William James Moss and Fred Todkill.

Charity numbered 7 above

Land situate near Bow Bridge in the Parish of Ashprington in the said County of Devon containing 15 perches or thereabouts with the Mission Hall since erected thereon being the land comprised in the above-mentioned conveyance dated the 10th December, 1906, and made between Edward Windeatt and two others of the one part and The Devon Baptist Association Corporation Limited of the other part.

Sealed by Order of the Board this 31st day of December, 1954.

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